

#	Case Name	Tentative
		inducement, including, as alleged here, through fraudulent concealment. (Id., p. 843.) Accordingly, the demurrer on this ground is OVERRULED. The case management conference is continued to November 2, 2026 at 9:00 a.m. in Department C28. Defendant shall give notice of this ruling.
54.		
55.	Orthopaedic Specialty Institute Medical Group of Orange County v. OCA Care of CA LLC 2025-01483911	Plaintiff Orthopaedic Specialty Inst. Medical Group's Motion for Leave to file a First Amended Complaint is GRANTED. Plaintiff seeks leave to amend the complaint to add new allegations against the presently named Defendant as well as additional Defendants to be added. Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, "in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars...." (Code Civ. Proc., § 473, subd. (a).) A motion for leave to amend must also comply with California Rules of Court, Rule 3.1324. Here, the declaration of Kathryn B. Salmond satisfies the requirements of Rule 3.1324. There is currently no trial date set. Accordingly, the court exercises its discretion and the motion is GRANTED. Plaintiff is ordered to file and serve the proposed First Amended Complaint within 30 days. Plaintiff shall give notice of this ruling.
56.	Bufkin v. Vista Del Rio Housing Partners, LP 2024-01406584	Defendant City of Orange's Motion for an Order to Depose an Incarcerated Defendant – Irvin Garcia is GRANTED. (Code Civ. Proc., §§ 1995, 1996.) Defendant may depose prisoner Irvin Garcia at the Theo Lacy Facility in Orange, California. Defendant to submit a proposed order, and to give notice of this ruling.
57.	Hope Autism Therapies, LLC v. Dybnis	Defendants Barbara Dybnis, individually and as trustee of the Sacha Dybnis and Barbara Dybnis Family Trust, and the Sacha Dybnis and Barbara Dybnis Family Trust's motion to compel

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	2026-01546607	plaintiff Hope Autism Therapies, LLC to arbitrate the claims asserted in its First Amended Complaint is GRANTED. A party moving to compel arbitration under Code Civil Procedure Section 1281.2 must prove by a preponderance of the evidence that: 1. The parties entered into a written agreement to arbitrate; 2. One or more of the claims at issue are covered by that agreement; and 3. The responding party refused a prior demand for arbitration under the agreement of the claims at issue. (Code Civ. Proc., § 1281.2; <i>Villacreses v. Molinari</i> (2005) 132 Cal.App.4th 1223, 1230.) If the moving party meets the above burden, the burden is shifted to the party opposing arbitration to prove unconscionability or other defenses. <i>Mar v. Perkins</i> (2024) 102 Cal.App.5th 201. Specifically, "a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." <i>Mt. Holyoke Homes, L.P. v. Jeffer Mangels Butler & Mitchell</i> (2013) 219 Cal.App.4th 1299, 1308. The arbitration language is in an addendum attached to the lease agreement. The addendum prefaces the rest of the content by stating: "This is an addendum to the lease of Suite F and the Fenced in area, as described in the above lease agreement between Lessor..." The applicable arbitration language states in part: A. ARBITRATION OF DISPUTES: Except as provided in Paragraph B below, the Parties agree to resolve any and all claims, disputes or disagreements arising under this Lease or negotiations concerning this lease, including, but not limited to any matter relating to Lessor's failure to approve an assignment, sublease or other transfer of Lessee's interest in the Lease under Paragraph 12 of this Lease, any other defaults by Lessor, or any defaults by Lessee by and through arbitration as provided below and irrevocably waive any and all rights to the contrary. The Parties agree to at all times conduct themselves in strict, full, complete and timely accordance with the terms hereof and that any attempt to circumvent the terms of this Arbitration Agreement shall be absolutely null and void and of no force or effect whatsoever.